

TENTATIVE RULING

Case: **Capital One, N.A. v. Amajioyi**
 Case No. CV2025-2685

Hearing Date: **July 16, 2026** **Department Thirteen** **9:00 a.m.**

Defendant Chukwunedum Amajioyi’s motion to set aside default and default judgment is **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., § 473.5, subd. (b).) Defendant does not show that his lack of actual notice in time to defend the action was not caused by his inexcusable neglect. (*Ibid.*; see Amajioyi decl.) Additionally, defendant’s motion was not accompanied by “a copy of the answer, motion, or other pleading proposed to be filed in the action.” (Code Civ. Proc., § 473.5, subd. (b).)

The notice of motion provides notice of this Court’s tentative ruling system. However, the notice does not contain the required language pursuant to Local Rule 11.2(b) (as amended, eff. Jan. 1, 2023). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Compass Club, LLC et al. v. Webb et al.**
Case No. CV2026-0396

Hearing Date: **July 16, 2026** **Department Fourteen** **9:00 a.m.**

Defendants James Webb and Melissa Webb's (collectively, "defendants") demurrer to plaintiffs Compass Club, LLC and Compass Leaf, LLC's first amended complaint is **OVERRULED**. (Code Civ. Proc., § 430.10.) The Court finds that defendants: (1) failed to file a notice of hearing as required by California Rules of Court, rules 3.1112(a) and 3.1320(c); (2) failed to state in separate paragraphs each ground of the demurrer and whether it applies to the entire complaint or specified causes of action as required by California Rules of Court, rule 3.1320(a); and (3) failed to file a meet and confer declaration as required by Code of Civil Procedure section 430.41(a)(3.)

As the Court is overruling the demurrer on procedural grounds, the Court need not rule on plaintiffs' request for judicial notice ISO opposition.

Defendants have by no later than **July 27, 2026**, to answer or otherwise plead to plaintiffs first amended complaint. (Cal. Rules of Court, rule 3.1320(j).)

The notice of demurrer does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for demurring party, or the demurring party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.